

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Wendy Rodriguez Figueroa	Team: Team # 5	CCRB Case #: 201009973	☐ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 07/22/2010 1:00 AM	Location of Incident: § 87(2)(b)	Precinct: 69	18 Mo. SOL 1/22/2012	EO SOL 1/22/2012	
Date/Time CV Reported Thu, 07/22/2010 9:52 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 07/22/2010 9:52 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM EreK Powers	08154	944907	069 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Yishin Park	04146	939179	069 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM EreK Powers	Discourtesy: PO EreK Powers spoke obscenely and/or rudely to § 87(2)(b)	§ 87(2)(b)

Case Summary

§ 87(2)(b) filed this complaint with the CCRB via telephone on July 22, 2010. On July 22, 2010, at approximately 1:00 a.m., § 87(2)(b) called the 69th Precinct stationhouse to report her landlord for turning the water off in her apartment. Two officers, a black male and an Asian male, responded to the call. The officers were identified via investigation as PO Ere Powers and PO Yishin Park, respectively. The officers stated they were going to the landlord's other residence to speak with him and that they would come back. When the officers did not return, § 87(2)(b) called the stationhouse and was told that the officers would be coming back to her residence. The officers returned and informed § 87(2)(b) that the landlord had said he had tried to turn the water back on, but her door was locked. She informed them that the water was turned off from the basement, not her apartment. She insisted that the officers arrest or issue a summons to her landlord. PO Park and PO Powers left. § 87(2)(b) called the stationhouse again about making a complaint against both officers. She was told the officers would return. Upon arrival, PO Powers yelled at her and asked how she got the number she was calling and ordered her not to call it any more. PO Powers continued by saying and repeating, "Don't call back the fucking number," and "I don't give a fuck," when she continued to complain (**allegation A**). She called the stationhouse again and asked for the correct names of the officers and she was told that it could not be provided and that she should just use the names she had observed on the officers' uniforms.

§ 87(2)(b) provided the name Park or Parker for the Asian male officer. A CTS search confirmed that there is one PO Park assigned to the 69th Precinct and there are no officers with the name Parker. PO Yishin Park of the 69th Precinct is an Asian male. The 69th Precinct Automated Roll Call System for July 22, 2010 for Tour 1 confirmed that PO Park's partner was PO Ere Powers. A search of CTS confirmed that PO Ere Powers is a black, male. § 87(2)(g)

§ 87(2)(b) was called 5 times and sent two letters between July 27, 2010 and August 3, 2010. The letters have not been returned to CCRB by the USPS. On July 27, 2010, § 87(2)(b) stated she wanted to proceed with an investigation and would call the undersigned to schedule a time to come in and give a statement. On August 2, 2010, the undersigned asked § 87(2)(b) when she would be able to come in and § 87(2)(b) stated she would call back to confirm a date and time. A search in the NYC Department of Correction's inmate look-up service performed on August 5, 2010 indicated that § 87(2)(b) is not incarcerated. As of the closing of this complaint, § 87(2)(b) has not contacted the CCRB.

§ 87(2)(g)

Team: 5

:

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date